

2:00 PM LINE 7

25-CIV-06717

HUI JI VS. VOLVO CAR USA LLC

HUI JI  
VOLVO CAR USA LLC

CHELSEA HOLLINS  
FREEMAN D CULLOM

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**Plaintiff's Motion for Payment of Attorneys' Fees and Reimbursement of Costs and Expenses**

**TENTATIVE RULING:**

For the reasons stated below, plaintiff Hui Ji's "Motion for Attorney's Fees, Costs, and Expenses," filed on September 3, 2025, is **GRANTED-in-part** and **DENIED-in-part**. The court awards to plaintiff, as the prevailing party, the following:

- \$11,745 total awarded attorney's fees; +
- \$668.30 total awarded costs/expenses
- (no multiplier)
- \$12,413.30 (total award)

Plaintiff's request for relief under Code of Civil Procedure, section 473, subdivision (b), filed on September 16, 2026, is **GRANTED**. Plaintiff states that attorney Nadia Alam's declaration was inadvertently not filed with plaintiff's moving papers. The court grants the request and has considered the Alam declaration. Where evidence is belatedly filed, the court sometimes continues the hearing or grants the opposing party an opportunity to respond. Here, however, the court finds that the Alam declaration does not change the court's decision regarding the motion, and therefore, finds it unnecessary to continue the hearing or otherwise delay a ruling on the motion.

**A. Background**

This case was filed under Song-Beverly Consumer Warranty Act, which permits a prevailing consumer to recover their reasonable attorney's fees, costs and expenses. (Civ. Code § 1794, subd. (d).) Plaintiff filed the case on September 3, 2025. Defendant Volvo Car USA, LLC filed its Answer in October 2025. On January 31, 2026, fewer than five months into the case, the parties signed a Settlement Agreement. Plaintiff, as the prevailing party, now seeks a total award of \$23,308.10 for attorney's fees and costs. Defendant does not dispute that plaintiff is the "prevailing party" for purposes of recovering fees but challenges the amount requested.

By any objective measure, very little happened in this litigation. In the few months that the case was pending, plaintiff served some standard initial discovery requests, but the case settled before defendant responded. No depositions took place. No motion practice occurred.

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No case management conferences or other hearings were held. Essentially, plaintiff filed the case, and shortly thereafter, settlement discussions began and a settlement was reached. By plaintiff's calculation, by the end of February 2026 (a month after the case settled), plaintiff's counsel had billed a total of 16.8 hours on the case. With this fee motion, plaintiff seeks credit for about 30 hours of attorney time.

## **B. Discussion**

Courts generally employ the "lodestar" method in determining fee awards in cases involving consumer protection statutes. (*Press v. Lucky Stores* (1983) 34 Cal.3d 311, 322; *Robertson v. Fleetwood Travel Trailers of California* (2006) 144 Cal.App.4th 785, 818-819 [lodestar applicable to fee awards under the Song-Beverly Act].) Defendant does not argue otherwise. The lodestar method of calculating fees entails three steps: (1) determining the number of hours reasonably spent; (2) determining the reasonable hourly rate; and (3) consider whether a multiplier is warranted. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 49.)

Having reviewed the submissions, the court will reduce the claimed \$3,900 "flat rate" for pre-litigation activities down to \$1,950. Plaintiff seeks \$3,900 as a:

Flat rate for all services rendered prior to the preparation of the Complaint in this matter, including all communications with client, including, but not limited to, case facts, merits of case, applicability of Song-Beverly to case facts, client's contacts to defendant, attorney-client fee agreement, contingency fee arrangement, and pertinent evidentiary documentation; attorney review of client's repair orders, purchase contract, current registration, vehicle payment information, and incidental damages; the preparation of Attorney-Client fee agreement; computation of client's actual damages, and all written and verbal communications with defendant's representative(s) outside the context of litigation.

(Mot., exh. A [time entries].)

A fee motion serves to award plaintiff for all attorney's fees reasonably and actually incurred. A "flat rate" provides no indication of how much attorney time was actually spent. And by grouping together of a large number of tasks into one category, the time entry prevents the court from determining how much attorney time was spent on each individual task, and from assessing whether the amount of time spent on each task was reasonable.

Total reduction in fees: \$1,950.

Attorney Chelsea Hollins's September 3, 2025 time entry for \$2,970 was erroneously billed at a hourly rate of \$900/hr. Plaintiff's Reply brief concedes this mistake. Hollins's hourly rate is \$545, but this 3.3 hour entry was "billed" at \$900/hr. The court will apply a \$545/hr. rate. Thus, the \$2,970 figure will be reduced to \$1,798.50 (3.3 hrs. x \$545/hr. = \$1,798.50.)

Total reduction in fees: \$1,171.50.

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Attorney Nadia Alam's \$450/hr. rate is high. Ms. Alam has practiced law for less than two years. Her \$450/hr. rate appears excessive for the work she is performing. Rather than reducing her hourly rate and parsing through each of attorney Alam's time entries and applying that lower rate, the court will reduce the total award by \$1,000, which will effectively reduce attorney Alam's hourly rate somewhat.

Total reduction in fees: \$1,000.

The court will strike 3 hours of time spent on the fee Motion. Plaintiff's spreadsheet identifies the following time spent on this fee motion:

- 3-13-26 .5 hrs. (at \$450/hr.) \$225 (attorney Alam)
- 3-16-26 2.5 hrs. (at \$450/hr.) \$1,125 (attorney Alam)
- 3-18-26 1.3 hrs. (at \$450/hr.) \$585 (attorney Alam)
- 3-18-26 1.1 hrs. (at \$625/hr.) \$687.50 (attorney Fhima)

Spending over five hours on this fee motion appears excessive, particularly given the evidence indicating that the motion was largely cut and paste from a template. (See Sept. 11, 2026 Tolmasoff Decl., ¶¶ 10-11, exh. F [showing that the fee motion is virtually word-for-word identical to a motion that Neale & Fhima filed over four years ago in an unrelated matter].) Accordingly, the court will strike the following two time entries for work on the fee motion:

- 3-13-26 .5 hrs. (at \$450/hr.) \$225
- 3-16-26 2.5 hrs. (at \$450/hr.) \$1,125

Total reduction in fees: \$1,350.

The court will reduce the claimed \$2,700 for reviewing the Opposition, drafting the Reply, and attending the hearing to \$1,500, which the court finds to be a more reasonable amount of fees for these tasks.

Total reduction in fees: \$1,200.

Plaintiff will not incur \$450 to oppose a motion to tax costs, because defendant is not contesting costs. (The Motion seeks \$450 for one anticipated hour opposing a motion to tax costs, but defendant is not challenging the costs.)

Total reduction in fees: \$450.

### C. Plaintiff's Fee Award Calculation

- \$18,866.50 (total loadstar fees claimed by plaintiff)
  - Minus \$1,350 (reduction of attorney Alam's time spent on the fee motion)
  - Minus \$1,200 (reduced time for reviewing the Opposition, drafting the Reply, and attending the hearing)
  - Minus \$1,950 (reduced time for pre-litigation "flat rate" billing activities)
  - Minus \$1,171.50 (reduced time for attorney Hollins's time entry on 9/3/2025, erroneously billed at \$900/hr.)
  - Minus \$450 (anticipated time spent in opposing a motion to tax costs)
  - Minus \$1,000 (adjusting attorney Alam's hourly rate slightly downward)
- \$11,745 (total awarded fees)

Given that the case is not complex, its short duration, and the fact that very little happened in this case, the court declines to apply a multiplier.

Plaintiff's fee motion is **GRANTED-in-part**, as follows:

- \$11,745      total awarded attorney's fees; +
- \$668.30      total awarded costs/expenses
- (no multiplier)
- **\$12,413.30 (total award)**

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendants' counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order *repeating verbatim the tentative ruling*" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM LINE 8

25-CIV-08222

ANGIE M. CHRISTENSEN VS. CITY OF BELMONT

ANGIE M. CHRISTENSEN  
CITY OF BELMONT

PRO SE  
ANA SANDERSON

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**Defendant's Motion to Strike Portions of Plaintiff's Complaint**

**TENTATIVE RULING:**

See Line 9. If plaintiff appears to contest the tentative ruling, or at a continued hearing on October 21, 2026 at 2:00 p.m., in Department 28, the court will issue the following tentative ruling:

Defendant City of Belmont's Motion to Strike Portions of plaintiff Angie M. Christensen's Complaint is **DENIED AS MOOT**.

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